HERMYSH KATSANDE
and
FRANCIS KAPULA
and
TINASHE NIGEL MASHINGAIDZE
and
ELIJAH CHIKWANHA
and
ADMIRE NYAMANDE
and
CHRISTOPHER MATINANGA
and
TINOTENDA MAPIRA.
versus
SHERIFF OF THE HIGH COURT
and
OFFICER IN CHARGE (MABELREIGN POLICE STATION)
and
RM AFRICA PROPERTY CONSULTANTS PRIVATE LIMITED
and
HAYES CONSTRUCTION PRIVATE LIMITED.

HIGH COURT OF ZIMBABWE
WAMAMBO J
HARARE; 22 August and 27 October 2025

Urgent Chamber Application

S M Bwanya, for the applicants
No appearance, for the 1st respondent
S N Kusemwa, for the 2nd respondent
S Evans, for the 3rd & 4th respondents

WAMAMBO J: The matter before the court is an urgent chamber application for a stay of execution pending the determination of an application for rescission of default judgment under case number HC7211/20.

The second applicant is subject to an eviction order issued under HC7211/20, which directs his removal from the 31 stands listed therein. In the present matter, the second applicant denies ownership of the stands in question.

The remaining applicants submitted that they were not party to the proceedings under HC7211/20. They only became aware of the eviction order against Hermysh Katsande on 10 August 2025, upon being informed by Sergeant Mapfumo of Mabelreign Police Station that plans were underway to eject them from their homes and demolish their houses pursuant to the said court order. They contend that the stands from which they are to be evicted do not belong to Hermysh Katsande, but are owned by them.

The third and fourth respondents argued that the second applicant's denial of ownership is a misdirection. They submitted that in November 2022, the late Justice TAGU issued an order identifying the second applicant's stands in Lot 12 Tynwald Township, and that the second applicant has consistently claimed ownership and interest in the stands listed under HC7211/20.

Furthermore, the respondents submitted that the other applicants claim to have purchased the stands from the second applicant, who now denies ever owning them. They argued that the applicants are therefore illegally occupying the third and fourth respondents' stands and have no legal basis to seek a stay of execution. In conclusion, the respondents maintained that the applicants purchased stands from a person who had no title.

The third and fourth respondents raised a point in limine, contending that the matter lacks urgency. They submitted that the urgency is self-created, as the notice of ejectment was served on the applicants on 17 June 2025. They argued that the alleged notification of 10 August 2025 is a misrepresentation intended to mislead the court. They further submitted that no additional instructions have been issued to the first respondent and that the applicants are fabricating facts to create a false sense of urgency. Additionally, there is no supporting affidavit from the legal practitioners who allegedly communicated with the police, and the applicants are therefore put to the strictest proof thereof.

It is trite law that one of the requirements for an urgent application to be entertained by the court is that the matter must be genuinely urgent. In *Kuvarega* v *Registrar General* 1998 (1) ZLR 188 (H), CHATIKOBO J stated at page 198 F that:

> "What constitutes urgency is not only the imminent arrival of the day of reckoning. A matter is urgent if, at the time the need to act arises, the matter cannot wait. Urgency which stems from a deliberate or careless abstention from action until the deadline draws near is not the type of urgency contemplated by the rules. It necessarily follows that the certificate of urgency or the supporting affidavit must always contain an explanation of the non-timeous action if there has been delay…"

The third and fourth respondents attached the notice of ejectment, corroborating their submissions that the applicant was issued with the notice of ejectment on 17 June 2025.

The applicants failed to provide a reasonable explanation for their delay in bringing this application. Accordingly, the court finds that the matter does not meet the threshold of urgency.

Order:

1. The application i+s not urgent and is struck off from the roll of urgent matters.

2. The applicants shall pay the second, third, and fourth respondents' costs at the ordinary scale, jointly and severally, the one paying the others to be absolved.

WAMAMBO J…….....

Jiti Law Chambers, the applicant's legal practitioners
Civil Division of The Attorney General, 2nd respondent's legal practitioners
Mabuye Zvarevashe Evans Legal Practitioners, 3rd & 4th respondents' legal practitioners